

26NNCV02726 26NNCV02726

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Case Number: 26NNCV02726 Hearing Date: August 14, 2026 Dept: E

Case No: 26NNCV02726

Hearing

Date: 08/14/2026 – 8:30 a.m.

Trial

Date: UNSET

Case Name:

MANNAN MINASSIAN v. BMW OF NORTH AMERICA, LLC; and DOES 1-50, Inclusive

[TENTATIVE

RULING – MJOP]

RELIEF REQUESTED

Defendant, BMW of North America, LLC (BMW NA or Defendant),
moves for judgment on the pleadings as to all causes of action in Plaintiff's
Complaint.

PARTIES/PAPERS

Moving Party: Defendant, BMW of North America, LLC (BMW NA
or Defendant)

Responding Party: Plaintiff, Mannan Minassian

Moving Papers: Notice/Motion; Request for Judicial Notice;

Proposed Order

Opposition Papers: Opposition; Declaration of Ashkan Reza

Reply Papers: Reply

BACKGROUND

Plaintiff, Mannan Minassian, filed the Complaint in this action on 4/8/2026 against Defendant, BMW of North America, LLC.

Plaintiff's Complaint labels the four causes of action in the Complaint as:

- (1) Violation of Song-Beverly Consumer Warranty Act;
- (2) Breach of Implied Warranties Pursuant To Song-Beverly;
- (3) Failure To Promptly Repurchase Produce Pursuant To Song-Beverly; and
- (4) Failure to Commence Repairs Within A Reasonable Time and To Complete Them Within 30 Days Pursuant To Song-Beverly.

Defendant now moves for judgment on the pleadings as to the entire Complaint.

PROCEDURAL

Meet and Confer

Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings. (Code Civ. Proc. (CCP), § 439(a).)

"A

determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings.” (CCP, § 439(a)(4).)

Here,

Defendant’s counsel alleges that a meet and confer occurred. (Miller Decl., ¶ 3.)

LEGAL STANDARD – MOTION FOR JUDGMENT ON THE PLEADINGS

If moving party is a defendant, a motion for judgment on the pleadings may be made if either of the following conditions exist: (1) The court has no jurisdiction of the subject of the cause of action alleged in the complaint, or (2) The complaint does not state facts sufficient to constitute a cause of action against the defendant. (CCP, § 438(c)(1)(B).)

“The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit.” (CCP, § 438(d).)

“A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself. [Citation.]” (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877.) “A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 (Citations Omitted).) The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322 (citing Schabarum v. California

Legislature (1998) 60 Cal.App.4th 1205, 1216.)

TENTATIVE RULING

Defendant moves for judgment on the pleadings as to all causes of action in the Complaint for failure to state facts sufficient to constitute a cause of action.

Defendant's and Plaintiff's papers for this hearing are very difficult to decipher.

Since Defendant is moving on the basis of failure to state facts sufficient to constitute a cause of action, the Court would have imagined that Defendant would have identified each cause of action in the Complaint, cited to legal authority explaining what the elements are for each cause of action, and then explained what element, or elements, Plaintiff failed to allege for each cause of action.

Likewise, the Court would have imagined that Plaintiff's opposition would have identified each cause of action in the Complaint, cited to legal authority explaining what the elements are for each cause of action, and then explained how Plaintiff's Complaint alleged each element for each cause of action.

The parties' papers, unfortunately, do not explain these things.

Defendant's primary argument appears to be premised on the idea that since Plaintiff's Complaint alleges that the subject vehicle was purchased "certified-used," it is not a "new motor vehicle" under *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*).

While Defendant is correct to note that Plaintiff does not explicitly allege that the subject vehicle is a new motor vehicle under Civil Code § 1793.22(e)(2), Defendant's heavy reliance on *Rodriguez* is not entirely on point.

First, *Rodriguez* is not a pleading case. The trial court in *Rodriguez* made its determination on whether or not the vehicle was a "new motor vehicle" under the Act based on a

motion for summary judgment. Rodriguez does not explain what must be alleged at the pleading stage.

Second, to the extent that Defendant is arguing that Plaintiff's Complaint fails because the car is used and not a "new motor vehicle," it appears that certain used cars can qualify as "new motor vehicles" under the Song-Beverly Act.

"This text makes clear that certain used cars — "a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty" — qualify as "new motor vehicles" for purposes of the statute. (§ 1793.22, subd. (e)(2).)" (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 198.)

Third, Defendant fails to explain how Rodriguez is applicable, or possibly not applicable, to all the causes of action in Plaintiff's Complaint.

While it is not entirely clear if Rodriguez stands for the proposition that a plaintiff must explicitly allege that the subject vehicle is a new motor vehicle under Civil Code § 1793.22(e)(2), Plaintiff's opposition ultimately explains that at the very least leave to amend should be granted because Plaintiff can allege that the subject vehicle is a new motor vehicle under 1793.22.

The Court notes that most of the arguments that Defendant asserts in its MJOP are difficult to follow.

Defendant makes some type of argument about uncertainty/ambiguity by citing to a case that doesn't involve the Song-Beverly Act, but the Court is not clear what Defendant's argument has to do with a motion for judgment on the pleadings.

If moving party is a defendant, a motion for judgment on the pleadings may be made if either of the following conditions exist: (1) The court has no jurisdiction of the subject of the cause of action alleged in the complaint, or (2) The complaint does not state facts sufficient to constitute a cause of action against the defendant. (CCP, § 438(c)(1)(B).)

Defendant also argues extensively (and somewhat confusingly) about Plaintiff's second cause of action pertaining to breach of implied warranty. Defendant also attempts to use judicial notice to treat this motion like a motion for summary judgment to conclusively establish that Defendant is a "distributor" and not a "manufacturer." Defendant's argument about it being a "distributor" versus a "manufacturer" is somewhat difficult to follow.

Further, Defendant's argument on Silvio is unavailing; Silvio is not a pleading case and it does not support the conclusion that Defendant argues that it does.

Defendant's argument on Civil Code § 1793.2(b) is also incomprehensible.

Plaintiff's opposition is also incomprehensible.

Plaintiff discusses § 1795.5, but the Court has no idea what § 1795.5 has to do with Plaintiff's Complaint because § 1795.5 is not mentioned once in Plaintiff's Complaint.

Ultimately, since both parties' papers are largely indecipherable, and since Plaintiff argues he can cure any defects on amendment, the Court GRANTS Defendant's motion for judgment on the pleadings, and the Court further GRANTS Plaintiff leave to amend the Complaint.

"In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.)

Defendant's request for judicial notice of BMW's Statement of Information filed with the State of California, Office of the Secretary of State is granted; however, the truth of the matters therein are not admitted as true.